



CHAPTER xxx.

An Act to empower the lord mayor aldermen and
burgesses of the city of Bristol to construct
works in connection with their dock undertaking
and for other purposes. [29th June 1922.]

A.D. 1922.

WHEREAS the city and county of Bristol (herein-
after referred to as "the city") is a municipal
borough subject to the Acts relating to municipal
corporations and under the government of the lord
mayor aldermen and burgesses of the city (hereinafter
referred to as "the Corporation"):

And whereas the Corporation acting by the council
are the urban sanitary authority for the district of
the said borough:

And whereas it is expedient that the Corporation
should be empowered to construct the works in connection
with their dock undertaking by this Act authorised:

And whereas estimates have been prepared by
the Corporation for the execution of the works by
this Act authorised and such estimates are as follows—

	£
For the raising of Netham Dam	
authorised by this Act - - -	1,000
For the narrowing and straightening of	
Canons' Road authorised by this Act	10,000

And whereas the several works included in such
estimates are permanent works within the meaning of

[Price 9d. Net] A 1

A.D. 1922. — section 234 of the Public Health Act 1875 and it is expedient that the cost thereof should be spread over a term of years :

And whereas the dock undertaking of the Corporation is carried on in competition with other undertakers who are free from certain of the financial restrictions and conditions to which the Corporation are subject :

And whereas it is expedient that the Corporation should be empowered to expend money out of the revenue of their said dock undertaking upon advertising and making more generally known that undertaking and the port of Bristol and the facilities in connection therewith :

And whereas it is expedient that the Corporation should be empowered to borrow money for the purposes of the works by this Act authorised and other the purposes of this Act and further money for certain purposes of their dock undertaking :

And whereas it is expedient that the other provisions contained in this Act should be made :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas plans and sections showing the lines situation and levels of the intended works and the lands in or through which they will be made and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of such lands have been deposited with the clerk of the peace for the county of Gloucester and are in this Act referred to as the deposited plans sections and book of reference :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :

PART I.

A.D. 1922.

PRELIMINARY.

1. This Act may be cited as the Bristol Corporation Act 1922 and this Act and the Bristol Dock Acts 1848 to 1920 may be cited together as the Bristol Dock Acts 1848 to 1922. Short and collective titles.

2. This Act is divided into Parts as follows (that is to say)— Act divided into Parts.

Part I.—Preliminary.

Part II.—Works in connection with dock undertaking.

Part III.—Finance and miscellaneous.

3. In this Act unless the subject or context otherwise requires— Interpretation.

“The city” means the city and county of Bristol;

“The Corporation” means the lord mayor aldermen and burgesses of the city whether acting under the provisions of the Municipal Corporations Acts or as the urban sanitary authority of the district consisting of the city or in the execution of the Acts relating to the port and harbour of Bristol;

“The borough fund” and “the borough rate” mean respectively the borough fund and the borough rate of the city;

“The dock undertaking” means and includes the undertaking carried on by the Corporation upon or in connection with the docks for the time being of the Corporation and the real and personal property railways piers works and appliances acquired appropriated or provided by them for the purposes thereof including any such property as aforesaid which is held by a grantee in fee farm or is leased to or occupied by lessees or tenants of the Corporation;

“The dock revenue” includes all dues rents and moneys (other than borrowed moneys or any other moneys which ought to be carried to the account of capital) payable to the Corporation in any way on account of the dock undertaking.

A.D. 1922.

PART II.

WORKS IN CONNECTION WITH DOCK UNDERTAKING.

Power to
make
works in
connection
with dock
under-
taking.

4. The Corporation may subject to the provisions of this Act and in the line or situation and within the limits of deviation shown upon the deposited plans and according to the levels shown upon the deposited sections construct the works hereinafter described with all necessary and proper works and conveniences connected therewith. The works hereinbefore referred to and authorised by this Act will be situate in the city and are—

Work No. 1 A raising of the existing dam or weir known as Netham Dam constructed across the River Avon;

Work No. 2 A narrowing and straightening of Canons' Road Canons' Marsh such narrowing and straightening commencing at the south-western corner of the transit shed at Canons' Road known as Shed W and terminating at a point seven yards or thereabouts westward of the north-western corner of the transit shed in Canons' Road known as Shed T.

Limits of
deviation.

5. In the construction of the Work No. 2 authorised by this Part of this Act the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding one foot either upwards or downwards.

Subsidiary
works in
connection
with Work
No. 2
authorised
by this
Part of
this Act.

6.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Corporation may in connection with the Work No. 2 authorised by this Part of this Act and for the purposes thereof alter the level of Canons' Road for the purpose of adapting the same to the said authorised work and may alter divert or stop up all or any part of any drain sewer channel or gas or water main or pipe wire or apparatus within the said limits the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of gas or water

in any main or pipe or of electricity or telephonic communication in any wire or apparatus and making compensation for any damage done by them in the execution of the powers of this section : A.D. 1922.

Provided that before the Corporation alter divert or stop up all or any part of any water main pipe or apparatus belonging to the Bristol Water Works Company the Corporation shall give seven days' notice in writing to the company and the work connected with such alteration diversion or stopping up shall be executed under the direction and superintendence and to the reasonable satisfaction of the engineer of the company.

(2) Provided that the Corporation shall not alter divert or otherwise interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

7.—(1) The Corporation during the construction of the Work No. 2 authorised by this Part of this Act may break up and also temporarily stop up divert and interfere with Canons' Road for the purpose of executing the said work and may for any reasonable time prevent all persons other than those bonâ fide going to or from any house in that road from passing along and using the same. Temporary stoppage of street.

(2) The Corporation shall provide reasonable access for foot passengers bonâ fide going to or from any such house.

8. The Corporation shall with reference to Netham Dam as raised under the powers of this Act be entitled to exercise and enjoy all such rights powers and privileges as those to which they are entitled with reference to the said dam as constructed before the passing of this Act under the provisions of the enactments relating thereto. Powers of Corporation with reference to Netham Dam.

9. The Corporation may upon the completion of the narrowing and straightening of Canons' Road (Work No. 2) by this Act authorised stop up so much of that road as is situate eastward of that road as so narrowed and thereupon all public rights of way over that portion of road shall be extinguished and the said portion of road shall be vested in the Corporation as Stopping up of portion of Canons' Road.

A.D. 1922. — part of their dock estate and may be appropriated and used by them for the erection of warehouses sheds depôts or buildings or for any other purpose of the dock undertaking.

For protection of
Bristol Gas
Company.

10. For the protection of the Bristol Gas Company (in this section referred to as “the company”) the following provisions shall unless otherwise agreed in writing between the Corporation and the company have effect (that is to say):—

The provisions of section 22 of the Bristol Corporation Act 1903 (except subsection (7) of the said section) so far as the same are applicable and are not inconsistent with the provisions of this Act shall extend and apply mutatis mutandis to and in relation to the works authorised and to the powers conferred on the Corporation by this Part of this Act and in construing such section for the purposes of this Act the expression “this Act” shall mean the Bristol Corporation Act 1922.

PART III.

FINANCE AND MISCELLANEOUS.

Expenses of
execution
of Act.

11. All expenses incurred by the Corporation in carrying into execution the provisions of this Act and not by this Act otherwise provided for (except such expenses as are to be paid out of borrowed money) shall be paid out of the dock revenue and if in any year that revenue be insufficient for the purposes to which it is applicable the deficiency shall be made up out of the borough fund and borough rate.

Power to
borrow.

12.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the revenue fund and rate mentioned in the third column of the said table and they shall pay off all moneys so borrowed within the respective periods (each of which is in this

Act referred to as “the prescribed period”) mentioned A.D. 1922.
in the fourth column thereof (namely) :—

1	2	3	4
Purpose.	Amount.	Charges.	Period for Repayment.
	£		
(a) (i) For the construction of the Works Nos. 1 and 2 by this Act authorised	11,000	The dock revenue and the borough fund and borough rate.	Sixty years from the date or dates of borrowing.
(ii) For the erection or re-construction of ware-houses sheds or other buildings for the pur-poses of the dock under-taking - - - - -	115,000		
(iii) For the equipment of such warehouses sheds or other buildings and the provision and erec-tion therein or in con-nection therewith of machinery appliances and other works and conveniences - - -	62,000		Thirty years from the date or dates of borrowing.
(iv) For the general pur-poses of the dock under-taking - - - - -	100,000		Such period not exceeding sixty years from the date or dates of borrowing as the Minister of Transport may prescribe.
(b) For paying the costs charges and expenses of this Act as hereinafter defined.	The sum requisite.	The borough fund and borough rate.	Five years from the passing of this Act.

(2) No part of the said sum of one hundred thousand pounds shall be borrowed except with the consent of the Minister of Transport.

(3) (A) The Corporation may also with the consent of the Minister of Transport borrow such money or

A.D. 1922. further money as may be necessary for any of the purposes of this Act.

(B) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the said Minister and that period shall be the prescribed period for the purposes of the enactments incorporated herewith.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge such revenue fund or rate as may be prescribed by the said Minister.

Incorporation of certain sections of Acts of 1897 1901 and 1918.

13.—(1) The following sections of the Bristol Corporation Act 1897 (that is to say)—

Section 73 (Power to borrow under Local Loans Act 1875);

Section 74 (Incorporation of sections of Public Health Act 1875);

Section 76 (As to sinking fund);

Section 79 (Annual return with respect to sinking funds &c.); and

Section 80 (Application of moneys borrowed);

and the following sections of the Bristol Docks and Railways Act 1901 (that is to say)—

Section 102 (For protection of lenders);

Section 103 (Priority of existing mortgages); and

Section 104 (Corporation not to regard trusts);

and the following section of the Bristol Corporation Act 1918 (that is to say)—

Section 70 (Power to re-borrow)

shall extend and apply mutatis mutandis to and in relation to the borrowing of moneys by the Corporation on mortgage under the powers of this Act and the repayment and application of moneys so borrowed and otherwise in respect of such mortgages as if those sections had been re-enacted in this Act with reference thereto.

(2) For the purposes of the above-mentioned sections as applied by this section the periods prescribed for repayment of borrowed moneys by the section of this Act of which the marginal note is "Power to borrow" shall respectively be deemed to be the prescribed period referred to in those sections or some of them.

14. The powers of borrowing money given by the Bristol Corporation Act 1920 or by this Act shall not be restricted by any of the regulations contained in section 234 (Regulations as to exercise of borrowing powers) of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they may borrow under the said Bristol Corporation Act 1920 or this Act shall not be reckoned.

A.D. 1922.

Section 234
of Public
Health Act
1875 not to
apply.

15. The Corporation may pay or contribute towards the cost of advertising and making more generally known the advantages of the dock undertaking and the port of Bristol and the facilities in connection therewith and may defray any expenses so incurred by them out of the dock revenue as part of the working expenses of the dock undertaking to an extent not exceeding in any one year the sum of five thousand pounds.

Power to
expend
money in
advertising
dock under-
taking and
port of
Bristol.

16. The Corporation shall within six months after the expiration of the financial year ending on the thirtieth day of April one thousand nine hundred and twenty-two and of each subsequent financial year send to the Minister of Transport a copy of the accounts for that financial year relating to the dock undertaking.

Annual
accounts of
dock under-
taking to
be submit-
ted to
Minister of
Transport.

17. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Crown
rights.

18. All the costs charges and expenses incurred by the Corporation preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act shall be paid by the Corporation out of

Costs of
Act.

[Ch. xxx.]

Bristol Corporation [12 & 13 GEO. 5.]
Act, 1922.

A.D. 1922. — moneys to be borrowed by the Corporation under this Act or at the option of the Corporation out of the borough fund or borough rate and moneys so paid as last aforesaid may be recouped by and charged to the moneys to be borrowed under this Act.

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